

HOUSE BILL 2635

By Shaw

AN ACT to amend Chapter 142 of the Private Acts of 1990; and
any other acts amendatory thereto, relative to the charter
of the Town of Stanton.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 142 of the Private Acts of 1990, and any other acts amendatory
thereto, is amended by deleting Section 5 in its entirety and substituting instead the following:

SECTION 5. The town shall have the power to:

- (1) Assess, levy, and collect taxes for all general and special purposes
on all subjects or objects of taxation, and privileges taxable by law for municipal
purposes;
- (2) Adopt classifications of the subjects and objects of taxation that are
not contrary to law;
- (3) Make special assessments for local improvements;
- (4) Contract and be contracted with;
- (5) Incur debts by borrowing money or otherwise, and give any
appropriate evidence thereof, in the manner provided for in this section;
- (6) Issue and give, sell, pledge, or in any manner dispose of, negotiable
or nonnegotiable interest-bearing or noninterest-bearing bonds, warrants,
promissory notes, or orders of the municipality, upon the credit of the municipality
or solely upon the credit of specific property owned by the municipality or solely
upon the credit of income derived from any property used in connection with any
public utility owned or operated by the municipality, or solely upon the credit of
the proceeds of special assessments for local improvements, or upon any two (2)
or more such credits;

(7) Expend the money of the municipality for all lawful purposes;

(8) Acquire or receive and hold, maintain, improve, sell, lease, mortgage, pledge, or otherwise dispose of property, real or personal, and any estate or interest therein, within or without the municipality or state;

(9) Condemn property, real or personal, or any easement, interest, or estate or use therein, either within or without the municipality, for present or future public use; the condemnation shall be effected in accordance with Tennessee Code Annotated, Title 29, Chapter 16, or in any other manner provided by law;

(10) Take and hold property within or without the municipality or state upon trust, and administer trusts for the public benefit;

(11) Acquire, construct, own, operate, and maintain, or sell, lease, mortgage, pledge, or otherwise dispose of public utilities or any estate or interest therein, or any other utility that is of service to the municipality, its inhabitants, or any part of the municipality, and further, may issue debt for these purposes under the Local Government Public Obligations Act of 1986, compiled in Tennessee Code Annotated, Title 9, Chapter 21;

(12) Grant to any person, firm, association, or municipality, franchises for public utilities and public services to be furnished to the municipality and those in the municipality. The power to grant franchises embraces the power to grant exclusive franchises. When an exclusive franchise is granted, it shall be exclusive not only as against any other person, firm, association, or corporation, but also against the municipality itself. Franchises may be granted for a period of twenty-five (25) years or less, but not longer, except as provided in Tennessee Code Annotated, Section 65-4-107(b). The board may prescribe, in each grant of a franchise, the rates, fares, charges, and regulations that may be made by the grantee of the franchise in accordance with state and federal law. Franchises

may by their terms apply to the territory within the corporate limits of the municipality at the date of the franchises, and as the corporate limits may be enlarged, and to the existing streets, alleys, and thoroughfares that may be opened after the grant of the franchise;

(13) Make contracts with any person, firm, association or corporation for public utilities and public services to be furnished to the municipality and those in the municipality. The power to make contracts embraces the power to make exclusive contracts. When an exclusive contract is entered into, it shall be exclusive against any other person, firm, association or corporation. These contracts may be entered into for a period of twenty-five (25) years or less, but not longer. The board may prescribe in each such contract entered into the rates, fares, charges, and regulations that may be made by the person, firm, association, or corporation with whom the contract is made. Such contracts may by their terms apply to the territory within the corporate limits of the municipality at the date of the contract, and as the corporate limits may be enlarged, and to the then-existing streets, alleys, and thoroughfares and to any other streets, alleys, and other thoroughfares that may be opened after the grant of the contract;

(14) Prescribe reasonable regulations regarding the construction, maintenance, equipment, operation and service of public utilities, compel reasonable extensions of facilities for these services, and assess fees for the use of or impact upon these services. Nothing in this subdivision (14) shall be construed to permit the alteration or impairment of any of the terms or provisions of any exclusive franchise granted or of any exclusive contract entered into under subdivisions (12) and (13);

(15) Establish, open, relocate, vacate, alter, widen, extend, grade, improve, repair, construct, reconstruct, maintain, light, sprinkle and clean public

highways, streets, boulevards, parkways, sidewalks, alleys, parks, public grounds, public facilities, libraries and squares, wharves, bridges, viaducts, subways, tunnels, sewers, and drains within or without the corporate limits, regulate their use within the corporate limits, assess fees for the use of or impact upon such property and facilities, and take and appropriate property therefor under Tennessee Code Annotated, Sections 7-31-107 - 7-31-111 and 29-16-203, or any other manner provided by general laws;

(16) Construct, improve, reconstruct and re-improve by opening, extending, widening, grading, curbing, guttering, paving, graveling, macadamizing, draining, or otherwise improving any streets, highways, avenues, alleys, or other public places within the corporate limits, and assess a portion of the cost of these improvements on the property abutting on or adjacent to these streets, highways, or alleys under, and as provided by, Tennessee Code Annotated, Title 7, Chapters 32 and 33;

(17) Assess against abutting property within the corporate limits the cost of planting shade trees, removing from sidewalks all accumulations of snow, ice and earth, cutting and removing obnoxious weeds and rubbish, street lighting, street sweeping, street sprinkling, street flushing, and street oiling, the cleaning and rendering sanitary or removing, abolishing, and prohibiting of closets and privies, in such manner as may be provided by general law or by ordinance of the board;

(18) Acquire, purchase, provide for, construct, regulate, and maintain and do all things relating to all marketplaces, public buildings, bridges, sewers, and other structures, works, and improvements;

(19) Collect and dispose of drainage, sewage, ashes, garbage, refuse, or other waste, or license and regulate their collection and disposal, and the cost of

collection, regulation or disposal may be funded by taxation, special assessment to the property owner, user fees, or other charges;

(20) License and regulate all persons, firms, corporations, companies and associations engaged in any business, occupation, calling, profession, or trade not prohibited by law;

(21) Impose a license tax upon any animal, thing, business, vocation, pursuit, privilege, or calling not prohibited by law;

(22) Define, prohibit, abate, suppress, prevent, and regulate all acts, practices, conduct, businesses, occupations, callings, trades, uses of property, and all other things whatsoever detrimental, or liable to be detrimental, to the health, morals, comfort, safety, convenience, or welfare of the inhabitants of the municipality, and exercise general police powers;

(23) Prescribe limits within which business occupations and practices liable to be nuisances or detrimental to the health, morals, security, or general welfare of the people may lawfully be established, conducted, or maintained;

(24) Inspect, test, measure, and weigh any article for consumption or use within the municipality, and charge reasonable fees therefor, and provide standards of weights, tests, and measures in such manner as may be provided pursuant to Tennessee Code Annotated, Title 47, Chapter 26, Part 9;

(25) Regulate the location, bulk, occupancy, area, lot, location, height, construction, and materials of all buildings and structures in accordance with general law, and inspect all buildings, lands, and places as to their condition for health, cleanliness, and safety, and when necessary, prevent their use and require any alteration or changes necessary to make them healthful, clean, or safe;

(26) Provide and maintain charitable, educational, recreative, curative, corrective, detention, or penal institutions, departments, functions, facilities, instrumentalities, conveniences, and services;

(27) Purchase or construct, maintain, and establish a correctional facility for the confinement and detention of persons who violate laws within the corporate limits of the city, or to contract with the county to keep these persons in the correctional facility of the county and to enforce the payment of fines and costs in accordance with Tennessee Code Annotated, Sections 40-24-104 - 40-24-105, or through contempt proceedings in accordance with general law;

(28)

(A) Enforce any ordinance, rule, or regulation by fines, forfeitures and penalties, and by other actions or proceedings in any court of competent jurisdiction; and

(B) Provide by ordinance for court costs as provided in the Municipal Court Reform Act of 2004, compiled in Tennessee Code Annotated, Title 16, Chapter 18, Part 3;

(29) Establish schools, to the extent authorized pursuant to general law, determine the necessary boards, officers, and teachers required therefor, and fix their compensation, purchase or otherwise acquire land for or assess a fee for use of, or impact upon, schoolhouses, playgrounds and other purposes connected with the schools, purchase or erect all necessary buildings and do all other acts necessary to establish, maintain, and operate a complete educational system within the municipality;

(30) Regulate, tax, license, or suppress the keeping or going at large of animals within the municipality, impound them, and in default of redemption, sell or kill them;

(31) Call elections as provided by law;

(32) Have and exercise all powers that now or hereafter it would be competent for this charter specifically to enumerate, as fully and completely as though these powers were specifically enumerated; and

(33) Create a design review commission, which shall have the authority to develop general guidelines and to develop procedures for the approval of the guidelines for the exterior appearance of all nonresidential property, multiple family residential property, and any entrance to nonresidential developments within the municipality; provided, that the authority is subordinate to and in no way exceeds the authority delegated to a municipal planning commission pursuant to Tennessee Code Annotated, Title 13, Chapter 4. Any property owner affected by the guidelines may appeal a decision by the design review commission to the municipality's planning commission or, if there is no planning commission, to the entire municipal legislative body.

SECTION 2. Chapter 142 of the Private Acts of 1990, and any other acts amendatory thereto, is amended by deleting Section 18 in its entirety and substituting instead the following:

SECTION 18. A town judge may be appointed by the board of mayor and aldermen.

The town judge shall not be required to hold office to the exclusion of all other activities and may continue to practice law and conduct other business not in conflict with the duties of town judge.

Any person who is a resident of the state of Tennessee and has attained the age of thirty (30) years and is an attorney licensed to practice law in this state in good standing with the Tennessee Board of Professional Responsibility, shall be eligible for the office of town judge. The sole compensation for serving as town judge shall be a salary fixed by the board and all fees for actions or cases in his court shall belong to the town and shall be paid into the town treasury.

Jurisdiction of the town court is as authorized by the Municipal Court Reform Act of 2004, compiled in Tennessee Code Annotated, Title 16, Chapter 18, Part 3. The town judge shall preside over municipal court and shall have power and authority to impose fines and forfeitures for violations of town ordinances, to preserve and enforce order in the court, and to enforce collection of all fines, costs, and forfeitures imposed by the court. The judge of the town court shall have the authority to impose a monetary penalty not to exceed the amount authorized by state law for each violation of a town ordinance, in addition to court costs as set by ordinance. The judge shall have powers and authority granted to municipal court judges by general law.

The town judge shall be the exclusive judge of the law and the facts in every case before him, and no officer or employee of the town shall attempt to influence his decision except through pertinent facts presented in open court.

In the absence or disability of the town judge, the mayor may designate a qualified person to serve as city judge or, to the extent the general sessions court judge agrees to serve as city judge, may designate the general sessions court judge of the county or counties in which the municipality lies to be acting city judge until one (1) can be appointed at the next regularly scheduled meeting of the board, or as otherwise provided by ordinance.

Court costs shall be set by ordinance by the Board of Mayor and Aldermen as required by state law.

Appeals from the town court shall comply with requirements set by state law.

The board of mayor and aldermen may in lieu of appointing a town judge enter into an agreement, upon such terms and conditions as may be agreed upon, with some court of competent jurisdiction, for the provision of court services.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Stanton. Its approval or nonapproval shall be proclaimed by the presiding officer of the Town of Stanton and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.